

TENTATIVE RULING

Case: Wells Fargo Bank, N.A. v. Gale
Case No. CV-2025-0214

Hearing Date: February 3, 2026 **Department Fourteen** **9:00 a.m.**

The Court notes that plaintiff Wells Fargo Bank, N.A. failed to properly meet and confer “in person or by telephone, or by video conference ” prior to the filing of this motion for judgment on the pleadings. (Code Civ. Proc., § 439; Agne Decl., ¶¶ 1, 2, Ex. A.) However, the Court may not deny a judgment on the pleadings for failure to meet and confer. (Code Civ. Proc., § 439, subd. (a)(4); see *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355.)

Plaintiff’s request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Plaintiff’s motion for judgment on the pleadings is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 439.) The Court finds that plaintiff fails to show that the complaint states facts sufficient to constitute a cause of action for breach of contract against defendant Roberta Gale. (Code Civ. Proc., § 438, subd. (c)(1)(A) [a judgment on the pleadings may be brought when the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint].)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.